

Lalita Chauhan v. State of U.P.

Allahabad High Court · Division Bench · 12 January 2021 · Writ-C No. 26836 of 2020 · **Writ disposed of without merits; second respondent to decide the representation for a new domestic connection in accordance with law preferably within four weeks.**

HEADNOTE

A wife occupying a house recorded in her husband's name sought a mandamus for a new domestic connection in her own name after alleged disconnection amid family-court proceedings. Without expressing any opinion on the merits, and with consent, the High Court disposed of the writ by directing the licensee to decide her representation in accordance with the Electricity Act and Supply Code preferably within four weeks.

FACTUAL SUMMARY

Lalita Chauhan occupied a house recorded in her husband's name. Marital relations had broken down and family-court proceedings were pending. She alleged that her husband had the supply disconnected to force her out, and she sought a new domestic connection in her own name. She petitioned under Article 226 for a direction to decide her representation of 5 December 2020 and issue the connection. The respondents said the Electricity Act and Supply Code already provide a complete mechanism.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4

new domestic connection — occupier's representation

HOLDING

Without expressing any opinion on the merits, a writ seeking a new domestic connection in the occupier's own name is disposed of by directing the licensee to decide the pending representation in accordance with law within the time indicated. ¶ 5

PRINCIPLE TAGS

representation-to-be-decided-in-accordance-with-law Writ disposed of without merits; second respondent directed to decide the petitioner's representation for a new domestic connection in accordance with law preferably within four weeks. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER, AS OCCUPIER OF A HOUSE RECORDED IN HER HUSBAND'S NAME, IS ENTITLED TO A NEW DOMESTIC CONNECTION IN HER OWN NAME

Court expressed no opinion on the merits of the representation. ¶ 5